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L E A S E is made the twelfth day of December One thousand nine hundred and eighty- three B E T W E E N DOROTHY BUTTERWORTH of 24A Queens Road Hoylake Wirral Merseyside (hereinafter called 'the Lessor') of the one part and HERBERT HOLLAND and KATHLEEN MAY HOLLAND (his wife) both of 24 Queens Road Hoylake Wirral aforesaid (hereinafter called "the Lessee") of the other part

W H E R E A S the Lessor has agreed with the Lessee in consideration of the rent hereinafter reserved and the covenants on the part of the Lessor and Lessee hereinafter contained to grant this Lease

N O W THIS DEED W I T N E S S E T H as follows :-

1. I N consideration of the rent and the Lessees covenants hereinafter contained and reserved the Lessor hereby DEMISES unto the Lessee A L L THAT the property described in the First Schedule hereto (hereinafter called "the Lower Flat") subject to the rights contained in the Third Schedule hereto excepting and reserving out of this Lease for the benefit of the property described in the Second Schedule hereto (hereinafter called 'the Upper Flat') the rights set forth in the Fourth Schedule hereto TO HOLD the Lower flat except and reserved as aforesaid unto the Lessee for a term of 999 years from the date hereof at the rent of one peppercorn subject to the covenants conditions and stipulations hereinafter contained

2. T H E Lessee to the intent and so as to bind the lower flat

and so as to benefit and protect the upper flat and each and every part thereof hereby covenants with the Lessor and her successors in title that the Lessee and the persons deriving title under them will at all times hereafter observe and perform the stipulations and obligations set out in the fifth schedule hereto

3. THE Lessor to the intent and so as to bind the upper flat and to benefit and protect the Lower flat and each and every part thereof hereby covenants with the Lessee that the Lessor and the persons deriving title under her will at all times hereafter observe and perform the stipulations and obligations set out in the Sixth Schedule hereto

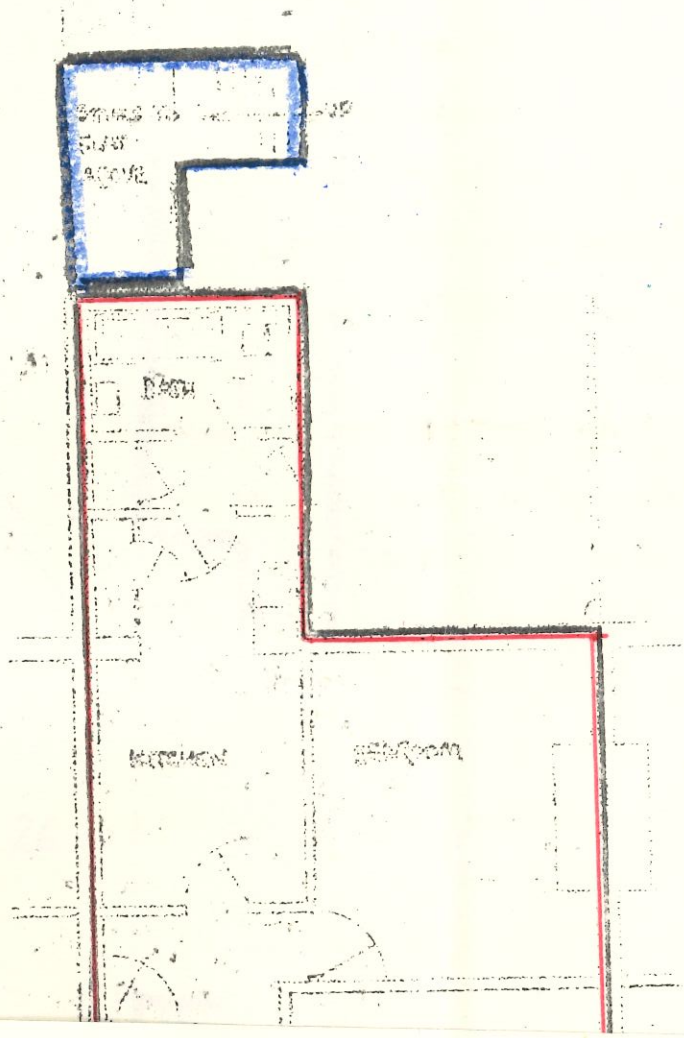
4. IT IS HEREBY CERTIFIED that the transaction hereby effected does not form part of a larger transaction or of a series of transactions in respect of which the amount or value or the aggregate amount or value of the consideration exceeds Twenty-five thousand pounds

IN WITNESS whereof the parties hereto have hereunto set their hands and seals the day and year first before written

THE FIRST SCHEDULE

ALL THAT flat known as 24 Queens Road Hoylake Merseyside being more particularly the lower of two self contained flats situate within the dwellinghouse and comprising the ground floor of the said dwellinghouse (including one half part of the depth of the joists between the ceiling of the lower flat and the floors of the upper flat and the internal and external walls of the lower flat up to the same level as the same is more particularly delineated

PLAN NO 1



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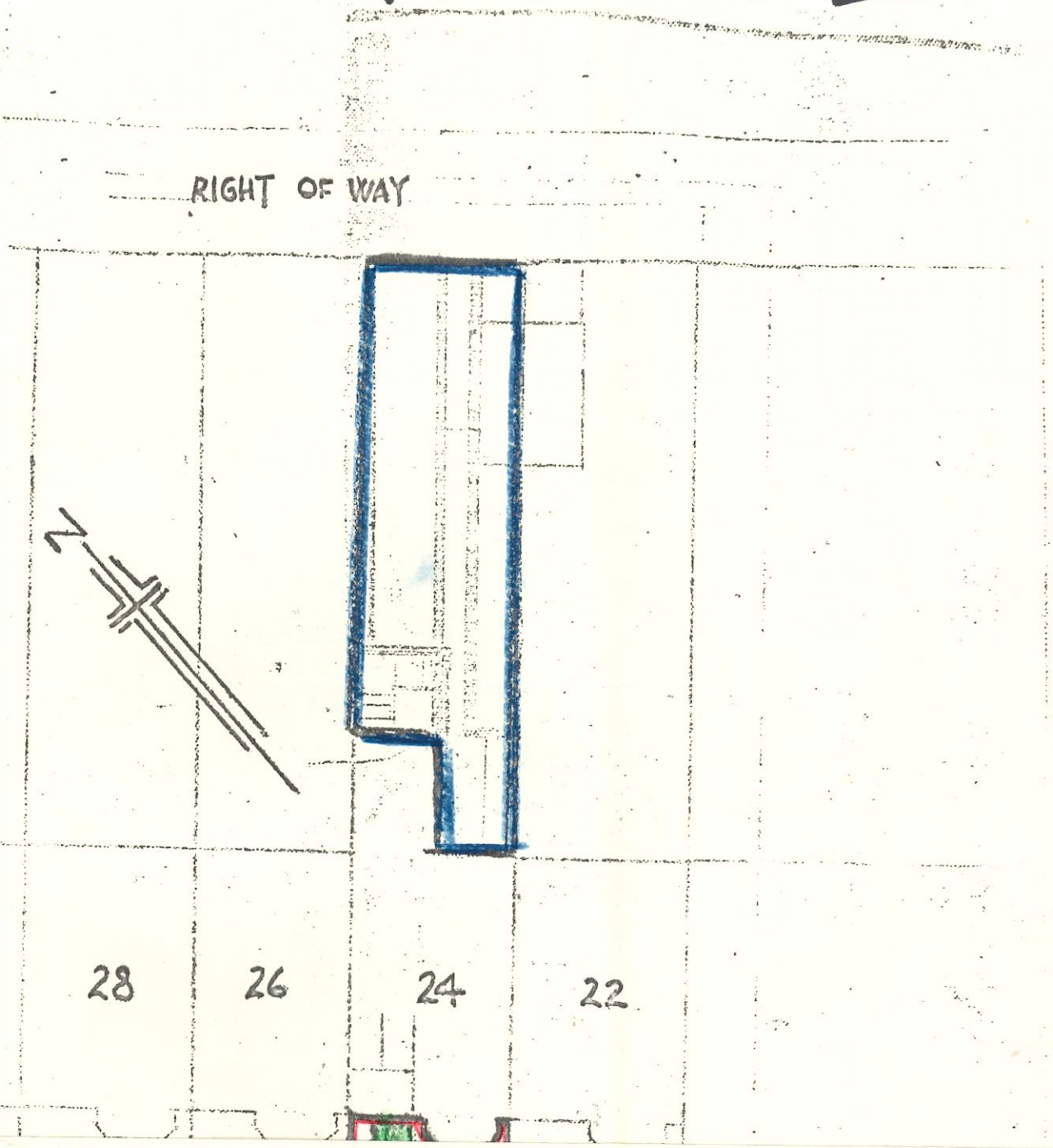

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and thereon edged red
on Plan number 1 annexed hereto / TOGETHER with the vestibule edged green on plan number 1 and Together with the land comprising the front garden to the dwellinghouse and edged red on plan number 2 annexed hereto (hereinafter called 'the front garden')

THE SECOND SCHEDULE

ALL THAT flat intended to be known as 24A Queens Road Hoylake aforesaid being more particularly the upper of the two self contained flats situate within the dwellinghouse and comprising the ground floor entrance and staircase leading thereto edged blue on the said plan number 1 and the remaining accommodation in the dwellinghouse situate on the first and second floors thereof and including the roof space thereof Together with the rear garden of the dwellinghouse edged blue on plan number 2 annexed hereto (hereinafter called "the rear garden")

THE THIRD SCHEDULE

Rights easements and appurtenances granted
for the benefit of the Lower flat

1. A right of way in common with the Lessor and her successors in title the owners or occupiers for the time being of the upper flat or any part thereof and their respective servants and licensees at all times and for all purposes connected with the reasonable use and enjoyment of the lower flat as a flat on foot only over the rear garden for the purpose of ingress to and egress from the rear entrance of the Lower flat for the purpose of placing and using a dustbin and hanging out washing to dry at all reasonable times

2. A right of support and protection for the lower flat by all parts of the upper flat so far as they now support and protect the same

3. A right of passage in common with the Lessor and others as aforesaid of gas electricity water and soil telephone radio and

television services from and to any part of the Lower flat through pipes wires and conduits lyinh or being under through or over the upper flat so far as may be reasonably necessary for the beneficial occupation of the lower flat for all purposes

4. The right with or without workmen and necessary materials to enter from time to time into or upon the Upper flat for the purpose of repairing so far as may be necessary such pipes drains meters wires and conduits as aforesaid and for the purpose of repairing or repainting any parts of the lower flat or for the purpose of cleaning the windows thereof in so far as such repairs repainting or cleaning cannot reasonably be carried out without such entry as is required by this paragraph referred to in all cases upon giving reasonable previous notice of her intentions so to enter to the Vendor except in case of emergency and making good to the reasonable satisfaction of the Vendor any damage caused to any part of the upper flat or arising out of the exercise of the right referred by this paragraph and the right to enter and examine the condition of the upper flat so as to ensure that the rights of support and protection referred to in paragraph 1 of this Schedule are at all times maintained

THE FOURTH SCHEDULE

Rights easements and appurtenances excepted and reserved to the Lessor for the benefit of the Upper Flat

1. A right of support and protection for the Upper flat by all parts of the Lower flat so far as they now support and protect the same

2. A right (in common as aforesaid) to the passage of gas electricity water and soil radio and television services from and to any part of the Upper flat through the pipes drains wires and conduits lying or being under through or over the Lower flat so far as may be

reasonably necessary for the beneficial occupation of the Upper flat for all purposes

3. A right with or without workmen and necessary materials to enter from time to time upon the Lower flat for the purpose of repairing so far as may be necessary such pipes drains wires meters and conduits aforesaid and for the purpose of rebuilding repairing or repainting any part of the Upper flat or for the purpose of cleaning the windows thereof (in so far as such repairs repainting or cleansing cannot reasonably be carried out without such entry as is by this clause referred to and in all cases upon giving reasonable previous notice of the intention so to enter to the Lessee except in cases of emergency and making good to the reasonable satisfaction of the Lessee any damage caused to any part of the Lower flat arising directly or indirectly out of the exercise of the rights granted by this paragraph) and the right to enter and examine the condition of the Lower flat so as to ensure that the rights of support and protection referred to in paragraph 1 of this Schedule are at all times maintained

4. A right of way on foot only over the entrance hall edged green on the said plan number 1 and over the pathway coloured green on the said plan number 2 in each case in common with the Lessee and all others entitled to the like right

THE FIFTH SCHEDULE

Stipulations and obligations to be observed and performed by the Lessee

1. Not to lessen or diminish the support or protection now given or afforded to all parts of the upper flat by the lower flat

2. Not at any time to make any structural alterations modifications or

additions to the lower flat (including the front garden) without first obtaining the consent of the owner of the Lessor such consent not to be unreasonably withheld

3. Not to obstruct by vehicles deposited materials or otherwise the free passage of the Lessor and other persons entitled to rights of way over the vestibule edged green on plan number 1 and the driveway coloured green on plan number 2 and not to park any vehicle caravan or house on wheels thereon

4. Not to cause or permit any obstruction of any drain or pipe used in common with the Lessor for the passage of water or soil

5. Not to use the flat or allow or permit the same to be used for any purpose other than as a single private dwellinghouse otherwise than as the residence of a practitioner of medicine or surgery or registered dental practitioner only and for no other purpose but so that such practitioners shall not receive lunatics or other patients to reside in the premises nor have any shop or dispensary for dispensing or selling drugs thereon nor for any purpose which may be or become a nuisance or annoyance to theowner of the upper flat or any neighbouring owners or occupiers nor for any immoral or illegal purpose or whereby any insurance for the time being effected by the Lessor on the upper flat may be rendered void or voidable or whereby the rate of premium may be increased

6. At all times hereafter to contribute and pay two fifths of all costs expenses and outgoings relating to the maintenance and repair of

(i) the main structure including the main walls and timbers the roof chimney stacks and boundary walls of the dwellinghouse (but excluding rear garden walls)

(ii) the rain water drainage system serving the dwellinghouse including

all gutters pipes and drains

(iii) the vestibule edged green on plan number 2 and the driveway coloured green on plan number 2

(iv) the gas and water pipes drains conduits and electrical wires and other gas water and electrical installations and the soil pipes serving the dwellinghouse and used or enjoyed by the Lessee and the Lessor in common

(v) the cost of decorating (at least once in every five years) the exterior of the building in a colour to be mutually agreed between the owners for the time being of the upper flat and the lower flat and in default of agreement in the same colour as shall then be existing

7. At all times to insure and keep insured the Lower flat and all outbuildings against loss or damage by fire and the usual comprehensive risks in the joint names of the Lessor and the Lessee in a responsible Insurance Office of repute which shall be approved by the Lessor to the full replacement value thereof (the amount of the replacement value to be agreed between the Lessee and the Lessor) and to make all payments necessary for the above mentioned purposes within fourteen days after the same shall respectively become payable and to produce to the Lessor not more often than once in every year on demand the policy or policies of such insurance and the latest receipt for such payment

8. To maintain the structure of the Lower flat in such a state of repair and condition as to ensure the maintenance of support and protection to the Upper flat so far as appropriate

9. Not to repair any joists or beams supporting the floors of the upper flat without giving notice to the Lessor of the intention to do so and giving full details of the work to be carried out and tobe

5. At all times to ensure that the floor of the upper flat is carpeted with good and substantial carpets or other suitable materials sufficient to provide adequate and reasonable sound proofing between the Lower flat and Upper flat

6. Not to overload the floors of the Upper flat

7. In any lease of the Upper flat to include covenants by the Lessee in the same form (as near as circumstances permit) to those contained herein

Joseph Charles Foster Attorney for
SIGNED SEALED AND DELIVERED by/)
the Lessor in the presence of:-)

Mr Macartney
Clerk with J & Almond Ltd
Solicitors
Haycake

SIGNED SEALED AND DELIVERED by)
the Lessee in the presence of:-)

Herbert H. Holland

Kathleen Mary Holland.

Solicitor
Lancs